

IN THE COMMON PLEAS COURT OF MIAMI COUNTY, OHIO
CIVIL DIVISION

THE OTHER WOMAN AND THE WIFE, LLC,	:	CASE NO. 2024 CV 00498
	:	(Judge Stacy M. Wall)
Plaintiff and Counterclaim Defendant,	:	
vs.	:	THIRD-PARTY PLAINTIFF
	:	KRISTEN JACOBS' NOTICE OF
KRISTEN JACOBS,	:	CONDITIONAL DISMISSAL OF
	:	CLAIMS AGAINST OLIVIA
Defendant and	:	<u>NICODEMUS ONLY</u>
Counterclaim/Third-Party Plaintiff,	:	
vs.	:	
CHELSEA SMALLWOOD,	:	
	:	
and	:	
OLIVIA NICODEMUS,	:	
	:	
Third-Party Defendants.	:	

Third-Party Plaintiff Kristen Jacobs conditionally dismisses all claims against Third-Party Defendant Olivia Nicodemus in the above-captioned case without prejudice as Ms. Jacobs and Ms. Nicodemus have reached a settlement agreement in principle and are in the final stages of finalizing and executing the agreement. Nothing in this dismissal prevents Ms. Jacobs from refileing her claims against Ms. Nicodemus if an agreement is not reached, nor strips this Court of jurisdiction to resolve such dispute or to enforce the settlement agreement. Each party shall bear its own costs and fees.

Respectfully submitted,

/s/ Morgan K. Napier

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Attorneys for Defendant Kristen Jacobs

CERTIFICATE OF SERVICE

I certify that on the 3rd day of February, 2025, the foregoing Third-Party Plaintiff Kristen Jacobs' Notice of Conditional Dismissal of Claims Against Olivia Nicodemus Only was served via electronic mail pursuant to Civ.R. 5(B)(2)(f) upon the following counsel of record:

Michael W. Sandner, Esq.
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Counsel for Third-Party Defendant
Olivia Nicodemus

and via regular mail pursuant to Civ.R. 5(B)(2)(c) upon the following parties:

Chelsea Smallwood
228 Montego Ky
Novato, CA 94949

Third-Party Defendant

/s/ Morgan K. Napier
Morgan K. Napier